

After a substantial review of the entire record and the papers offered in support and opposition of Plaintiff's motion, the Court finds the time billed for attorney hours is excessive and finds it reasonable to reduce the hours billed. The total attorney time of 30.2 hours is reduced by 4.5 hours to 25.7 hours. The Court finds the hours claimed by the law clerks to be reasonable.

This results in a lodestar set by the Court of \$10,707.50. This represents 25.7 hours at \$350 / hour and 13.7 hours at \$125 / hour.

Plaintiff also seeks a lodestar enhancement of 0.3.

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award. (*Serrano v. Priest* (Serrano III) (1977) 20 Cal.3d 25, 49.)

This matter was a straightforward lemon law action that was resolved early in litigation. As such, the court does not find that a lodestar enhancement is appropriate. Accordingly, the Court awards attorney fees in favor of Plaintiff in the amount of \$10,707.50.

Plaintiff's memorandum of costs seeks total costs in the amount of \$2,858.66. Defendant seeks to tax the costs for service of a notice of deposition to the dealership in this matter in the amount of \$75 and post-mediation costs of in the amount of \$172.50. The Court finds this appropriate and costs are taxed in the amount of \$247.50, awarding costs of \$2,611.16 to Plaintiff.

Plaintiff is awarded total attorney fees and costs in the amount of \$13,318.66 to be paid within thirty (30) days of this court's order.

26CV-02506 Laura Emery vs Monique Garza

Order Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing and temporary orders on Respondent has been filed with the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Mark V Bacciarini
Courtroom 10

627 W. 21st Street, Merced

Friday, May 29, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-00756	Maria Medina vs Foster Farms, LLC
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Motion to Compel Further Responses to Requests for Production of Documents; Request for Monetary Sanctions Against Defendant Foster Farms LLC

Plaintiff's motion to compel further responses to Production of Documents, Set One, is GRANTED IN PART AND DENIED IN PART.

As to No. 36, the motion is GRANTED. Objections OVERRULED. Defendant is to provide a further verified, code-compliant, response. (See Code Civ. Proc. §§ 2031.210; 2031.220; 2031.230; 2031.240.)

As to Nos. 43, 44, 46, 48, 50, 52, 54, 56, 58, 60, 62, 64, 66, 67, 68, 69 the motion is GRANTED IN PART. As to Defendant's assertion that they produced all documents in their possession, custody, or control, the court cannot force Defendant to produce documents it does not have. If the party has concealed records, the court has the power to exclude documents or other physical evidence at trial that has been concealed and that would cause unfair surprise at trial. (*Pate v. Channel Lumber Co.* (1997) 51 Cal.App.4th 1447, 1455-1456.)